Republic of the Philippines
Department of Education

09 SEP 2022

DepEd ORDER
No. 038, s. 2022

SUPPLEMENTAL GUIDELINES NO. 2 TO DEPED ORDER NO. 031, s. 2021
(Operational Guidelines on the Implementation of the School-Based Feeding Program)

To: Undersecretaries
Assistant Secretaries
Bureau and Service Directors
Regional Directors
Schools Division Superintendents
Public Elementary and Secondary School Heads
All Others Concerned

1. The Department of Education (DepEd), through the Bureau of Learner Support Services-School Health Division (BLSS-SHD) issues these Supplemental Guidelines No. 2 on the Implementation of the School-Based Feeding Program (SBFP) using Fiscal Year (FY) 2022 Funds to clarify the implementation period for the Nutritious Food Products (NFP) and milk, and define the procedure on the milk supply mapping process in compliance with Republic Act No. 11037 or the ***Masustansyang Pagkain Para sa Batang* Pilipino Act** for the current implementation and succeeding years. For FY 2022 funds, the status of implementation as of June 30, 2022 for NFP is at 28.59% accomplished, 33.57% with on-going feeding, and 37.84% or about 1.3 Million learners are still to be fed; while for the milk component, 17.49% accomplished, 16.55% with on-going feeding, and 65.96% or about 2.09 Million are still to be fed. Thus, the implementation for FY 2022 funds shall be extended.

2. The implementation period for FY 2022 funds is recommended from April to July 2022. However, for schools division offices (SDOs) having issues and concerns with the program, the period of implementation for both NFP and milk shall be extended from September to November 2022, while payment and liquidation will be until December 2022.

3. For SY 2021-2022 using FY 2022 and succeeding years' funds, the following supplemental guidelines shall be followed:

Section VI. Food Commodities

i. Regular Component

(1) SDOs may conduct procurement of NFP using the technical specifications in DepEd Order (DO) No. 031, s. 2021 and create/develop/localize their own technical specifications provided that it is in compliance with DOs 13, s. 2017; 031, s. 2021; and 010, s. 2022. SDOs may give specific quantities presented in the range in DO 031, s. 2022 and this DO provided that they will NOT go below the quantities specified in the technical specifications. (For example, in Annex 3 of DO 031, s. 2021, E-Nutribun is recommended to weigh 120-160 grams per pack or 60-80 grams x 2 pcs. The SDOs may recommend procurement of E-Nutribun weighing 130-140 grams per pc. or 65-70 grams x 2 pcs).

ii. On Milk Component

(1) SDOs shall conduct a second supply mapping activity among the local dairy producers under the NDA/PCC network to establish the possible volume of milk which can be supplied to the SDO within the implementation arrangement specified by DepEd.
(2) If after the milk supply mapping, and the SDO still has no commitment or insufficiently supplied by local dairy producers, the SDO may proceed to procure powdered/sterilized/ready-to-drink milk from commercial sources subject to the following prerequisites:

(a) Certification by NDA and/ or PCC that it is unable to provide the milk requirements of the SDO concerned. If NDA/PCC fails to provide a Certificate of Commitment within one week after the Milk Supply Mapping Activity, DepEd Regional Offices are authorized to issue a certification that the SDO has no supply from NDA/PCC so that they can proceed with the procurement of milk.
(b) Justification by the SDO that it is no longer practicable to source the milk supply from local dairy producers despite best efforts and utmost prudence.

4. The Milk Supply Mapping Flow Chart is provided in the enclosure.

5. All other provisions in the existing guidelines on DO 031, s. 2021 (Operational Guidelines on the Implementation of the School-Based Feeding Program) shall remain in force, unless sooner repealed, amended, or rescinded.

6. Regional directors, schools division superintendents, and school heads are enjoined to extend full administrative support to the implementation of the SBFP and these supplemental guidelines.

7. This Order shall take effect immediately upon its publication in the DepEd website. Certified copies shall be registered at the University of the Philippines Law Center-Office of the National Administrative Register (UP LC-ONAR), UP Diliman, Quezon City.

8. For more information, please contact the **Bureau of Learner Support Services-School Health Division**, 3rd Floor, Mabini Building, Department of Education Central Office, DepEd Complex, Meralco Avenue, Pasig City through email at blss.shd@deped.gov.ph or at sbfp@deped.gov.ph or at telephone number (02) 8632-9935.

9. Immediate dissemination of and strict compliance with this Order is directed.

SARA Z. DUTERTE
Vice President and Secretary

Encl.: As stated
References: DepEd Order: (Nos. 13, s. 2017; 031, s. 2021; and 010, s. 2022)
To be indicated in the Perpetual Index
under the following subjects:

BUDGET	NUTRITION EDUCATION
CHANGE	POLICY
LEARNERS	PROGRAMS

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Annexes:

Annex 1: Milk Supply Mapping Flow Chart - this process flow is consistent with the provisions in DO No. 31, s. 2021, however, the DepEd Regional Offices are given authority to issue certification that there is no milk supply from NDA/PCC.

